

Court No. - 1

Case :- WRIT - C No. - 4765 of 2020

Petitioner :- Hari Ballabh Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akhilesh Chandra Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Lay before another Bench as fresh on 13.02.2020 of which one of us (Ajit Kumar, J) is not a member after obtaining nomination from Hon'ble the Chief Justice.

(Ajit Kumar, J.)

(Ramesh Sinha, J.)

Order Date :- 10.2.2020

Gaurav

Court No. - 32

Case :- WRIT - C No. - 4765 of 2020

Petitioner :- Hari Ballabh Pandey
Respondent :- State Of U.P. And 3 Others
Counsel for Petitioner :- Akhilesh Chandra Srivastava
Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

Heard the learned counsel for the petitioner and perused the record.

Issue notice to respondent no. 4 returnable within six weeks.

Steps be taken within one week under R.P.A.D. apart from normal mode of service.

As prayed by the learned Standing counsel appearing on behalf of respondent no. 1 and learned Standing Counsel for respondents no. 2 and 3, four weeks' time is granted to file counter affidavit. Two weeks thereafter is granted to file rejoinder affidavit.

The respondent no. 4 may also file counter affidavit within the same period.

List this matter on 6.4.2020.

Order Date :- 13.2.2020

MLK

Court No. - 40

Case :- WRIT - C No. - 4765 of 2020

Petitioner :- Hari Ballabh Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akhilesh Chandra Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Abhinava Upadhya, J.

Hon'ble Vipin Chandra Dixit, J.

Two weeks' further time is allowed to the learned counsel for the respondents for filing counter affidavit.

List thereafter.

Order Date :- 25.8.2020

P.P.

(Vipin Chandra Dixit, J.)

(Abhinava Upadhya, J.)

Court No. - 5

Case :- WRIT - C No. - 4765 of 2020

Petitioner :- Hari Ballabh Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akhilesh Chandra Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Vishesh Rajvanshi

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

As prayed, put up on 17.11.2020 in the Additional Cause List.

Order Date :- 20.10.2020

Ak/

Court No. - 46

Case :- WRIT - C No. - 4765 of 2020

Petitioner :- Hari Ballabh Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akhilesh Chandra Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Vishesh Rajvanshi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Put up this case on 24.11.2020, as unlisted before the appropriate Bench.

Order Date :- 17.11.2020

M. Tariq

Court No. - 34

Case :- WRIT - C No. - 4765 of 2020

Petitioner :- Hari Ballabh Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akhilesh Chandra Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Vishesh Rajvanshi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the parties and perused the record.

By means of the present writ petition, the petitioner seeks to challenge the order dated 14.1.2020 which is nothing but a reiteration of the order dated 6.9.2019 passed by the Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam Limited Khand, Chitrakoot.

The record reveals that a Writ Petition No. 32792 of 2019 was filed by the petitioner seeking a writ of mandamus commanding the respondents to consider his application for new electricity connection. In the said petition, the objection had been taken by the learned counsel for the respondent therein that the prayer of the petitioner had already been adjudicated by the order dated 6.9.2019. Since, the petitioner did not assail the said order, the writ petition was dismissed as misconceived. Another Writ-C No. 38064 of 2019 has been filed by the petitioner challenging the order dated 6.9.2019 which has been dismissed being barred by Section 11 of the Code of Civil Procedure, 1908 (Principles of res judicata). The Court has opined that since the petitioner did not challenge the order dated 6.9.2019, at the earliest opportunity the challenge to the said order at the later stage cannot be maintained.

We may further record the submission of the learned counsel for the petitioner on the merits of the case. The order impugned states that the request of the petitioner for grant of electricity connection in the premises in question cannot be considered in view of the pendency of the civil suit namely Original Suit No. 9 of 2018 before the Court of Civil Judge (Senior Division), Carvy, Chitrakoot which has been instituted by the respondent no. 4.

The plaint of the suit is not on record. However, a perusal of the order of the first appellate court indicates that the said suit has been filed for relief of permanent injunction against the

petitioner herein. The interim injunction application has been rejected by the trial court and the appeal has also been dismissed.

The pendency of the said suit, in our opinion, should not come in the way for consideration of the application of the petitioner. The respondent, namely, the Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam Limited Khand, Chitrakoot is, therefore, under obligation to consider the request of the petitioner for grant of the electricity connection in accordance with the provisions of the Electricity Act, 2003 read with Electricity Supply Code, 2005. Fresh consideration shall be given and an expeditious decision in accordance with the law shall be taken within a period of four weeks from the date of receipt of a copy of this order.

The writ petition is disposed of, accordingly.

Order Date :- 24.11.2020

A. V. Singh